

THE GAZETTE OF INDIA

EXTRAORDINARY

PART – III – SECTION 4

PUBLISHED BY AUTHORITY

NEW DELHI, NOVEMBER 30, 2016

SECURITIES AND EXCHANGE BOARD OF INDIA

NOTIFICATION

Mumbai, the 30th November, 2016

SECURITIES AND EXCHANGE BOARD OF INDIA

(EMPLOYEES' SERVICE) (AMENDMENT) REGULATIONS, 2016

No. LAD-NRO/GN/2016-17/016.—In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely,—

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, for regulation 94, the following shall be substituted, namely,—

"Subscription to the SEBI Provident Fund or the SEBI New Pension Scheme

94. (1) Unless otherwise specified in these regulations, every employee shall become a member of the SEBI Employee's Provident Fund and shall agree to be bound by the Rules of the Fund.

(2) Notwithstanding anything contained in sub-regulation (1), every whole time employee joining the services of the Board, on and from such date, as may be specified, shall only become a member of the SEBI New Pension Scheme and shall agree to be bound by the Rules of the Scheme.

(3) Every whole time employee of the Board who is a member of the SEBI Employee's Provident Fund, prior to such date as may be specified, shall be given an option to remain a member of the SEBI Employee's Provident Fund or to become a member of the SEBI New Pension Scheme, in such manner as may be specified.

U.K. SINHA

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Employees' Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).
2. The Securities and Exchange Board of India (Employees' Service) Regulations, 2001 were subsequently amended –
 - (a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.
 - (b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2004 vide S.O. No.623(E).
 - (c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.
 - (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2009-10/28/190983.
 - (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
 - (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
 - (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/03/5290.

- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/223/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LAD-NRO/GN/2013-14/27/6721.
- (j) On 26th February, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LAD-NRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBI-NRO/OIAE/GN/2015-16/002.
